

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARIA THERESA POWERS,

Petitioner

VS.

ANDREW DANIEL JINKENS,

Respondent

) Case Number: FDI-22-796662

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: COMMUNITY PROPERTY DIVISION & IMPLEMENTATION OF
COMMUNICATION CENSOR

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Maria Theresa Powers (Mother) and Respondent Andrew Daniel Jenkins (Father). They share two minor children: Maxilliam (DOB: 5/28/14) and Lillian (DOB: 12/16/16).
- 2) On 2/13/26, Mother filed a Request for Order seeking determination of the community property interest in a condominium that Mother asserts is "BMR" (i.e., below market rate). Mother states the parties have been unable to reach an agreement regarding the disposition of the condominium; however, she currently has exclusive use and possession pursuant to an Emergency Protective Order (EPO) from 2023. Mother proposes the condominium be placed in a trust for the minor children.
- 3) On 3/25/26, Mother filed a Proof of Service indicating that the Request for Order was served on Father by personal service on 2/20/26.
- 4) Father did not file a Responsive Declaration.

1 **B. Findings and Order**

- 2 1) The issue raised in Mother's 2/13/26 Request for Order – determination of community property
3 interests in a condominium – is a trial issue; therefore, the Court finds good cause to reserve
4 jurisdiction over Mother's 2/13/26 Request for Order until the time of trial.
- 5 2) To advance in the dissolution process, either party may file an At Issue Memorandum to request a
6 Status Conference at which time a trial date can be requested if it is determined that the parties
7 are ready for trial.
- 8 3) Mother is encouraged to seek assistance from the ACCESS Center. Information for contacting the
9 ACCESS Center can be found here: <https://sf.courts.ca.gov/access-legal-self-help-center>.
- 10 4) The Court will prepare the Findings and Order After Hearing.
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